and a relic of the Middle Ages; but nothing could be further from the truth. A corporation is an entity — not imaginary or fictitious, but real, not artificial but natural. Its existence is as real as that of an army or of the Church. This is the element of truth in the reality theory of corporate personality which, originating in Germany, has commanded wide acceptance not only in that country but also in France and Italy.

IV.

Having thus established that a corporation is a real and natural entity, recognized but not created by the law, we next encounter the question whether this entity is a person. The answer to this question is, of course, vitally affected by our definition of "person." If we use the word in the signification which it conveys to the ordinary English-speaking layman, undoubtedly the corporate entity is not, in truth and reality, a person. For the corporate entity is not a human being; it is not even a rational creature capable of feeling and willing. But the word may be used in some very different sense. "When *I* use a word," said Lewis Carroll's Humpty Dumpty, "it means just what I choose it to mean — neither more nor less"; and when Alice objected, "The question is whether you *can* make words mean so many different things," Humpty Dumpty replied, "The question is which is to be master — that 's all." Many a German scholar has resolved, like Humpty Dumpty, that words shall not master *him*, and having thus impressed upon the word "person" his own meaning he demonstrates with absolute finality that the corporate entity is really a "person" — in *his* sense of the word.

Certain it is, however, that if the word is thus used in a special, non-popular sense, the proposition that a corporation is a person becomes a mere source of confusion. If by "person" the law means, not a rational, living creature similar to a man but a mere "subject of rights," — and this is the teaching of the more moderate members of Gierke's school [12] — then, in the name of clearness let us adopt some less ambiguous designation for this "subject of rights."

[12] See, Michoud, La Théorie de la Personnalité Morale, 7: "Pour la science de droit, la notion de personne est et doit rester une notion purement juridique. Le mot signifie simplement un sujet de droit, un être capable d'avoir des droits subjectifs lui appartenant en propre, — rien de plus, rien de moins."